

Conservatorship of Rose Jackson

21PR000029

[1] ACCOUNTING

[2] BIENNIAL REVIEW

TENTATIVE RULING: The matter is CONTINUED to September 03, 2026, at 8:30 a.m. in Dept. B. Conservator is directed to provide notice of the continued hearing to all persons entitled thereto including, Betty Herbert, Russell Reaux, Ellena Ashley and Miles Russell.

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Estate of Erlinda C. Vidal

24PR000297

STATUS HEARING RE: FINAL DISTRIBUTION

TENTATIVE RULING: The matter is CONTINUED to July 29, 2026, at 8:30 a.m. in Dept. B.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Seferino Garcia v. DHR Construction, Inc.

24CV000295

CONFERENCE: STATUS RE: COMPLIANCE HEARING

TENTATIVE RULING: The Court has reviewed the Declaration of Taylor Mitzner filed July 6, 2026, and is satisfied that the terms of the Order Granting Final Approval of Class Action and PAGA Settlement have been satisfied. The action is concluded. There is no need for appearance by the parties.

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****at 9:30 a.m.****

Charleen Wignall – Ewing v. Uegene Armstead et al

23CV000124

[1] DEFENDANT GENE ARMSTEAD’S MOTION FOR SUMMARY JUDGMENT

[2] MOTION TO COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO REQUESTS FOR PRODUCTION, SET ONE AND SET TWO, AND FOR MONETARY SANCTIONS OF \$10,000.00

TENTATIVE RULING: The Court remains without jurisdiction to rule on matters in the action. The Court CONTINUES hearing on the two pending motions to, and sets an OSC re: Dismissal on, August 14, 2026, at 8:30 a.m. in Dept. B. Petitioner is directed to show cause why the action should not be dismissed, pursuant to Code of Civil Procedure sections 583.410 and 583.420, subdivisions (a)(1) and (2), based on Petitioner’s ongoing failure to name and serve the Trust Beneficiaries. Petitioner is granted leave to file and serve, no later than July 30, 2026, a memorandum of no more than 15 pages, together with any supporting declarations, addressing the issue. Respondent is granted leave to file and serve, no later than August 5, 2026, a memorandum of no more than 15 pages addressing the issues and matters raised through Petitioner’s brief. If Respondent timely serves and files said brief, then Petitioner is granted leave to file and serve, no later than August 10, 2026, a reply memorandum of no more than 5 pages addressing matters set forth in Respondent’s brief. The Clerk is directed to serve Notice of Entry of the instant order on the parties.

Petitioner and Plaintiff Charleen Wignall-Ewing (commenced this action on January 30, 2023, by filing a Civil Complaint against Bruce Miroglio, and Gene Armstead both in his individual capacity and in his capacity as Trustee of the John Scruggs 2014 trusts. Ms. Wignall-Ewing filed a First Amended Complaint (FAC) on April 3, 2023. On August 9, 2023, Mr. Armstead demurred to the FAC. The Court sustained the demurrer by Minute Order of September 6, 2023. Therein, the Court found that “each of Plaintiff’s claims against Armstead arise out of alleged injuries she suffered in her capacity as beneficiary of the Subject Trusts. The Court further finds that Armstead’s alleged liability for those injuries arise exclusively from his role as Trustee of those trusts.” (See *id.* at p. 6.) Based on these findings and a review of the law, the Court ruled that “the provisions of the Probate Code control the parties and the subject matter of the claims asserted through the FAC by setting forth the applicable remedies and the proceedings to be followed. Under these provisions, the Court sitting in Probate has exclusive jurisdiction over proceedings involving the internal affairs of the Subject Trusts. [Citations.]” (*Ibid.*)

On September 20, 2023, Ms. Wignall-Ewing filed a Second Amended Complaint (SAC). Through the SAC, Ms. Wignall-Ewing asserted, for the first time, a claim for breach of trust, arising under the Probate Code, against Mr. Armstead. On January 22, 2024, Ms. Wignall-Ewing filed a Third Amended Complaint. The TAC asserted only the single cause of action for Breach of Trust, arising under the Probate Code, against Mr. Armstead in his capacity as Trustee, and a single cause of action for negligence against Mr. Miroglio.²

On November 1, 2024, Mr. Armstead filed his first Motion for Summary Judgment on the TAC (MSJ 1). Following hearing on March 14, 2025, the Court took MSJ 1 under submission. By Order After Hearing filed on March 21, 2025, the Court stated that “[d]uring oral argument, [counsel for Mr. Armstead] Mr. Queally argued, for the first time, that the Court lacked jurisdiction due to a failure, by Plaintiff, to comply with the Probate Code’s notice requirements. [¶] Ordinarily, the Court would not entertain arguments raised for the first time at hearing. However, because the argument implicates the Court’s jurisdiction to rule on the motion, the Court finds it appropriate to consider it, after affording the parties the opportunity to

² By Order of March 21, 2025, the Court granted Mr. Miroglio’s motion for summary judgment. Thus, Mr. Miroglio is no longer a party to the action.

address the issue fully.” The Court then set a schedule for further briefing on the jurisdictional issue.

On April 3, 2025, Mr. Armstead timely filed a Supplemental Brief. Therein, Mr. Armstead noted that there was no proof in the Court’s files that any of the other beneficiaries to the Trust had been served with Summons and a copy of any of the Complaints in the action. Mr. Armstead argued that this failure constituted a denial of these beneficiaries’ due process rights, and deprived the Court of its jurisdiction to make any rulings in the matter. Ms. Wignall-Ewing did not file a Supplemental Brief.

On May 21, 2025, the Court issued an Order After Hearing on Mr. Armstead’s MSJ 1. The Court, again, found that “[t]he Probate Code governs Petitioner’s current claims against Respondent Eugene Armstead” and that “[t]he Court will treat the Complaint against Eugene Armstead as a Probate Petition subject to the rules of the Probate Code *which include notice requirements particular to Probate matters.*” (*Id.* at p. 1. Italics added.) The Court concluded that it “has jurisdiction over the claims against Respondent Eugene Armstead only after the notice requirements are met.” (*Id.* at p. 2.)

On April 22, 2026, Mr. Armstead filed a second Motion for Summary Judgment on the TAC. Through her Opposition, Ms. Wignall-Ewing refers to the May 21, 2024, Order After Hearing. She then states, “Probate notice requirements are found in Probate Code sections 17201 and 17203. They require Wignall to state the names and addresses of each beneficiary entitled to notice in her Petition in order to commence the proceeding. Even though the court ruled that Probate notice requirements had not been met, Wignall did not amend her pleading to state the names of the interested parties. To this day, there is no pleading that identifies who the interested parties are in compliance with section 17201. According to the plain meaning of section 17201, this proceeding has not commenced.” (Opposition at 5:11-18.)

The Court agrees. The Court further notes that there remains no proof of service on any of the other beneficiaries in the Court’s file. Based on the foregoing, the Court remains without jurisdiction to rule on the pending motions.

The significant delay, by Petitioner, in putting the action at issue, however, strongly suggests that she is using the litigation process for an improper purpose. The Court, therefore, sets the matter for an Order to Show Cause why the Court should not dismiss the action pursuant to Code of Civil Procedure sections 583.410 and 583.420, subdivisions (a)(1) and (2). Petitioner is granted leave to file and serve, no later than July 30, 2026, a memorandum of no more than 15 pages, together with any supporting declarations, addressing the issue. Respondent is granted leave to file and serve, no later than August 5, 2026, a memorandum of no more than 15 pages addressing the issues and matters raised through Petitioner’s brief. If Respondent timely serves and files said brief, then Petitioner is granted leave to file and serve, no later than August 10, 2026, a reply memorandum of no more than 5 pages addressing matters set forth in Respondent’s brief.